



File No.: EXP202206316

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by INSTITUTO OFTALMOLÓGICO DE

***LOCALIDAD.1 B.B.B., S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated October 26, 2023, and based on the following

FACTS

FIRST: On October 26, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202206316, whereby it was determined:

TO IMPOSE on INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. for an infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR, two fines, one fine of 5000 euros (five thousand euros) and 2000 euros (two thousand euros) respectively, totaling 7,000 euros (seven thousand euros)

TO RAISE TO FINAL the provisional measure agreed upon in the opening agreement of this sanctioning procedure. Consequently, INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. with NIF ***NIF.1, is required to, within one month from the notification of this resolution, prove to this Spanish Agency for Data Protection the definitive cessation of the publication of the personal data of A.A.A.

TO ORDER INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, and as a consequence of the high risk posed by the maintenance of the publication in contravention of the fundamental right of the claimant to the protection of their data and to the guarantees and freedoms of the affected party, the respondent is ordered to immediately cease such actions.

SECOND: Said resolution, which was notified to the appellant on November 5, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

THIRD: As proven facts of the aforementioned sanctioning procedure, PS/00122/2023, the following was recorded:

FIRST: Publication of personal data of the claimant (their name and surname, ID number, phone number, as well as health-related personal data and data related to infringements committed due to document plagiarism). Provides a printout of the publication.

SECOND: The respondent indicates that they do not have their own website, nor have they been the owner of the website denounced by the complainant, and that they do not have their own medical personnel as they are dedicated to renting medical services and managing properties, without direct relation to patients, therefore they have never had direct contact with the complainant.

FOURTH: The appellant submitted on December 3, 2023, and December 5, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, basing it fundamentally on the allegations already made during the processing of the procedure and on the following aspects:

- The procedure has expired since the opening of the file is June 22, 2022, the resolution dated September 8, 2022, and it was reopened on June 20, 2023.
- Two behaviors that are contradictory and incompatible are sanctioned, and both cannot be demanded at the same time, as on one hand a negligent behavior is sanctioned for the lack of measures to prevent the leakage of personal data and, on the other hand, a fraudulent behavior is sanctioned for the revelation of personal data. The appellant considers that a single sanction should be imposed, as the same behavior cannot be both negligent and fraudulent at the same time. They add that if there had been an intention to reveal personal data, the measures would not have been effective.
- They allege a violation of the principle of non bis in idem, given that the intentional revelation of

personal data is punished and this same criterion is used as an aggravating factor.

- There has been no evidentiary activity; the sanction is based on the statements of the complainant and photocopies, without expert evidence to guarantee their authenticity, sanctioning the company for acts committed by a doctor, without evidence.
- The data of the complainant allegedly revealed is published on the Internet, indicating that the ID number of A.A.A. has been published by the same Generalitat Valenciana, that their position as ***PUESTO.1 has also been published, even in an official bulletin, which refers to their admission to ***PUESTO.1 and similarly, their name and surname appear linked to their ***PUESTO.1 in a resolution granting economic aid for language training for ***PUESTO.1 for 2022.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights.

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the digital rights (hereinafter, LOPDGDD).

II

Response to the allegations

1. The appellant states that the procedure has expired since the opening of the file is on June 22, 2022, the resolution dated September 8, 2022, and it was reopened on June 20, 2023.

In this regard, it should be noted that the complaint that is the subject of this sanctioning procedure is dated April 19, 2022, which was filed by A.A.A. against the INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L because, after writing a review on Google, the response from the defendant consisted of publishing her personal data, specifically, her name and surname, ID number, phone number, as well as personal health data and data related to infractions committed for document plagiarism. A printout of the publication is provided.

The appellant indicates as the "opening of the file" the date of June 22, 2022, which does not correspond to the date of the opening of the sanctioning procedure that led to the contested resolution, but rather to the date on which the agreement to admit the aforementioned complaint was notified. Subsequently, on September 2, 2022, after analyzing said complaint, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the appellant on September 8, 2022.

On September 24, 2022, the complainant filed a motion for reconsideration against the resolution issued, alleging the following:

- "The defendant is known on the Internet as both Instituto Oftalmológico de ***LOCALIDAD.1 and Centro Oftalmológico B.B.B., with both 'clinics' having the same postal address.
- The mobile phone from which a WhatsApp was sent requesting the deletion of the comment published on Google is the same as that provided for contact with the reported clinic.
- The response to the review does not currently appear on Google; however, Google registered it and notified the appellant via email.
- It considers that the defendant is responsible for the malicious disclosure of her personal data, and therefore is subject to the sanctioning regime, and a fine should be imposed on the responsible party and compensation for damages established.
- A copy of the bank transaction statement is provided, which proves that the Instituto Oftalmológico de ***LOCALIDAD.1 was the one that charged for the medical services rendered.

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- Finally, it requests that its personal data be deleted by the defendant.”

The AEPD, on February 1, 2023, resolves to ESTIMATE the motion for reconsideration filed by A.A.A. upon finding rational indications of a possible violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

As a consequence, the opening of the sanctioning procedure, which is now the subject of appeal, was initiated.

Regarding the sanctioning procedure subject to appeal, it should be noted that the initiation agreement was signed on June 8, 2023, and notified on June 20, 2023, informing in said document that this procedure will have a maximum duration of twelve months from the date of the initiation agreement, in accordance with the provisions of Article 64.2 of the LOPDGDD, which states the following:

“When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and in this organic law, it will be initiated by an initiation agreement, adopted on its own initiative or as a consequence of a complaint, which will be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which will be governed by the provisions of Article 67 of this organic law.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After that period, it will expire, and consequently, the file of actions will occur.”

The resolution of the sanctioning procedure subject to appeal was signed on October 26, 2023, and was notified on November 5, 2023.

Therefore, since the sanctioning procedure was initiated in June 2023, it cannot be considered that the processing time of the sanctioning procedure subject to appeal has exceeded the maximum period of 12 months established, and thus it can be concluded that the expiration of the procedure has not occurred.

2. Regarding the statements concerning the AEPD sanctioning two behaviors that are contradictory and incompatible, one negligent and the other malicious, and that both cannot be demanded at the same time.

In response to these last statements, the AEPD must indicate that in the present case, it sanctions for the infringements resulting from the non-compliance with the

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established in Articles 5.1.f) and 32 of the GDPR. The confidentiality and security of data are fundamentally reflected in these two independent provisions of the GDPR.

Article 5.1.f) of the GDPR is one of the principles relating to processing. The principles relating to processing are, on one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with intense expansive force; on the other hand, having a high level of specificity, they are mandatory norms that can be infringed.

Well, Article 5.1.f) of the GDPR incorporates the principle of integrity and confidentiality and determines that personal data shall be processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures. It establishes an obligation of result, not objective.

On the other hand, Article 32 of the GDPR regulates how security in processing should be articulated concerning the specific security measures that must be implemented, in such a way that, taking into

account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the variable probability and severity risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk that includes, among other issues, the ability to ensure the confidentiality of the data.

And as the Supreme Court warns in its ruling of February 15, 2022 (R 7359/2020), it is not enough to design the necessary technical and organizational means; their correct implementation and appropriate use are also necessary, so the controller will also be liable for the lack of diligence in their use.

As we can see, Article 32 of the GDPR, although related to Article 5.1.f) of the GDPR, does not encompass the principle in its entirety. Article 5.1.f) of the GDPR explicitly requires that confidentiality be guaranteed and requires a loss of confidentiality for its attribution. We may encounter situations where there are inadequate security measures without a loss of integrity and confidentiality. Both provisions pursue autonomous objectives, and their violation results from differentiated behaviors that can be sanctioned separately, with the intent observed in the commission of the infringements not being determinative for these purposes, that is, whether the infringements are the result of willful or negligent conduct.

3. In addition to the two previously indicated manifestations, the appellant has pointed out a third, indicating that the AEPD punishes the disclosure of data and uses this as an aggravating circumstance, a situation that is not related to the principle of non bis in idem invoked for this reason.

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In the case analyzed, a breach of the principle of confidentiality of personal data regulated in Article 5.1.f) of the GDPR was confirmed, and in determining the corrective powers to be applied to that breach, it was deemed appropriate to impose an administrative fine, as well as to require the adoption of adequate measures so that the operations of personal data processing comply with the provisions of the applicable regulations.

To set the amount of the fine to be imposed, the circumstances established in Article 83.2 of the same GDPR are taken into account, according to which, “When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly considered:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

As can be seen, among those circumstances to be considered in the assessment of the fine is the "intentionality or negligence in the infringement," which was assessed as concurrent in the individual case subject to the proceedings.

Therefore, the confirmed disclosure of data constitutes the infringing act, but not the circumstance evaluated to set the amount of the imposed fine, as the appellant indicates in their appeal.

4. The appellant also alleges that there has been no evidentiary activity and that the AEPD is sanctioning based solely on the mere statements of the complainant and photocopies, without expert evidence to guarantee their authenticity.

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The claiming party filed a complaint regarding the dissemination of their personal data through the business profile on Google of the responding party, which was included in the response that the latter made to a review from the claiming party. The complaint included a screenshot containing both comments, the review and the response, which evidenced that they remained published as of 04/19/2022.

This screenshot was already sent to the appealing party when they requested a copy of the file.

In the interest of transparency, the comments that were present on the Google profile of the responding party in response to a critique from the claiming party are transcribed as follows:

"(...)"

5. Finally, the appealing party has also stated that the data of the claimant allegedly revealed is published on the Internet, indicating that the ID number of A.A.A. has been published by the same Generalitat Valenciana, and that their position of ***POSITION.1 has also been subject to publication. However, this circumstance, regarding which the appealing party provides no evidence, even if true, does not by itself legitimize the use of the claimant's data by a third party. Furthermore, it does not encompass all the data related to the claimant that was included in the disclosed comment, as noted in the previous point.

6. Regarding the other statements made by the appealing party, it should be noted that they were already alleged throughout the sanctioning procedure now being appealed, and the appealing party has not provided any document that allows for the verification or substantiation that the resolution adopted by the AEPD should be reviewed, as the appealing party merely expresses their disagreement with the resolution issued and essentially reiterates the allegations already presented throughout the sanctioning procedure, all of which have already been analyzed and dismissed in Legal Grounds II, III, and IV of the appealed Resolution, as transcribed below:

"II

The principles regarding the processing of personal data are regulated in Article 5 of the GDPR, which establishes that "personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');

b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');

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c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization");

d) accurate and, where necessary, kept up to date; all reasonable measures will be taken to ensure that personal data that is inaccurate is erased or rectified without delay, with respect to the purposes for which it is processed ("accuracy");

e) maintained in a manner that allows the identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be retained for longer periods as long as it is processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ("storage limitation");

f) processed in a manner that ensures an adequate level of security for personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ("proactive accountability").

A breach of Article 5.1 f) of the GDPR may be subject to a fine of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 a) of the GDPR, which states "the breach of the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

Article 72.1 a) of the LOPDGDD states that for the purposes of prescription "in accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements will be considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein, and in particular the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

III

The security in the processing of personal data is regulated in Article 32 of the GDPR, which establishes the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure processing security.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

Article 83.4 of the GDPR establishes that administrative fines of up to €10,000,000 or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial

year, opting for the higher amount, shall be imposed when the following obligations are violated:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; Article 73.f) of the LOPDGDD, under the heading "Infringements considered serious," states:

"In accordance with Article 83.4 of Regulation (EU) 2016/679, the following infringements will be considered serious and will prescribe after two years, which involve a substantial violation of the articles mentioned therein, and in particular the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

IV

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In this case, a complaint is presented regarding the use of personal data specifically because after leaving a review on the Google My Business profile of the ophthalmological center, the owner responded by publishing a large amount of personal data, specifically the following:

"(...)"

This Agency received on July 3, 2023, a written response from the party being complained against, addressing the initiation of the present sanctioning procedure, indicating among other aspects that it does not have its own website, nor has it been the owner of the website reported by the complainant, and that it does not have its own medical staff as it is dedicated to the rental of medical services and management of premises, without direct relation to patients; therefore, it has never had direct contact with the complainant, and thus accusing it of such acts violates the principle of the presumption of innocence.

Despite such statements, the preliminary investigative actions carried out by this Agency allow us to ascertain that the party being complained against has been processing the following personal data of the complainant: name and surname, ID number, phone number, as well as personal health data and data related to infringements committed due to document plagiarism.

As already indicated in the appeal for reconsideration against the resolution issued in file EXP202206316, a search in GOOGLE MAPS regarding the Ophthalmological Center B.B.B. results in a link to the website: "****URL.1".

Upon accessing this page, the published information infers a presumed link between the Ophthalmological Center, B.B.B., and the Ophthalmological Institute of ***LOCALITY.1.

Furthermore, after conducting a search in the Commercial Registry regarding the "INSTITUTO OFTALMOLOGICO DE ***LOCALIDAD.1", it is confirmed that the legal entity "INSTITUTO OFTALMOLOGICO DE ***LOCALIDAD.1 B.B.B. SOCIEDAD LIMITADA" is obtained as a result.

Likewise, according to the data in the Database of the State Agency for Tax Administration (AEAT), in response to the request from the AEPD for the NIF and tax address of ***EMPRESA.1 (Professor B.B.B.), the AEAT communicates the following data: INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., ***NIF.1 ***DIRECCION.1."

It should also be noted that the complainant provides email correspondence with the doctor who operated on her, and the email address with which the doctor responds is exactly the same as that which appears in the documentation submitted by electronic registration by the respondent. That is to say, the respondent, when presenting its allegations, includes as a contact email exactly the same address that it uses to communicate with the complainant.

These facts would imply that the party being complained against would be violating Article 5.1 f) of the GDPR, as indicated in legal basis II for infringing the duty of confidentiality of the personal data it processes, as it has been established that

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publication in open of the claimant's personal data such as their name and surname, ID number, phone number, as well as health-related personal data and data related to infringements committed for document plagiarism.

Furthermore, it is considered that the entity being claimed against would have violated Article 32 of the GDPR, as indicated in legal basis III, because the fact that the personal data subject to this claim has been published implies the absence of security measures in the processing or the breach of the same, since the respondent chose to publish it without taking into account basic aspects such as the necessary confidentiality that must be maintained regarding the identifying and health data of the patients they handle, which shows that adequate security measures were not applied, as the Supreme Court states in its Judgment of 15/02/2022 (STS 543/2022), it is not enough to design the necessary technical and organizational means, but their correct implementation and appropriate use is also necessary, so that the responsible party will also be liable for the lack of diligence in their use and application.”

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. against the resolution of this Spanish Agency for Data Protection issued on October 26, 2023, in file EXP202206316.

SECOND: TO NOTIFY this resolution to INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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